KAPA ME - ACCEPTABLE USE POLICY

1. **Purpose**

1.1. This policy shall set forth the rules applicable to the use of the KAPA ME ("KAPA") Application.

1.2. Any use of our services must be consistent with the terms set out in this policy and failure to do so may result in the cancellation or suspension of usage of the Application.

1.3. KAPA reserves the right to change or modify the terms of this policy at any time and post the updated terms on the KAPA Application and can be made available on request. The use of KAPA's services after the updated version of this policy is posted online shall be deemed acceptance of said updated policy by the user.

1.4. For further information and/or policies, an email can be sent to info@kapame.com

2. **General**

2.1. If the User is below the age of 18 years, the user must always get permission from it's parent or guardian before usage or registration on KAPA. We may check that the User's parent or guardian has given such permission.

2.2. KAPA hereby prohibits the use of its services in a manner which:

2.2.1. Is unlawful and in connection with any criminal, civil or administrative violation of any applicable local, provincial, national or international law, treaty, court orders, ordinance, regulation or administrative rules.

2.2.2. Is harmful to another person or entity;

2.2.3. Interferes with the use of KAPA's application;

2.2.4. Violates intellectual property rights;

2.2.5. Results in the publication of material which is threating, offensive,

obscene, defamatory, discriminatory and/or constitutes hate speech;

2.2.6. Is abusive, risks the security or violates the privacy of another.

2.3. Any of the above activity on the application or services linked to KAPA shall be considered a breach of this policy.

2.4. When using the App or any service linked to KAPA, the user consents to all terms and conditions associated with KAPA.

2.5. It is acknowledged that all contents of the App, including any material, information, data, software, icons, trade-marks, designs which are displayed or incorporated in the App, are protected by law and at all times are property of KAPA.

2.6. The use of the App is entirely at the user's own risk, and the user assumes full responsibility for all risk or loss resulting from such use or reliance on any information on the App.

2.7. Whilst KAPA takes reasonable measures to ensure that content on the App is accurate and complete, KAPA makes no representation or warranty, whether express or implied, as to the quality, timeliness, operation, integrity, availability or functionality of the App or any information on the App.

3. **Prohibited Conduct**

3.1. Unlawful activity in connection with any criminal, civil or administrative violation of any applicable local, provincial, national or international law, treaty, court orders, ordinance, regulation or administrative rules.

3.2. KAPA's services shall not be used for the purpose of committing an offence against a child or in any manner that would constitute or promote unlawful interaction with children.

3.3. KAPA's services shall not be used to publish, submit, receive, upload, download, post, use, copy or otherwise produce, transmit, distribute or store child pornography. Suspected violations of this prohibition may be reported to

KAPA at the following e-mail address: support@kapame.com. KAPA will report any discovered violation of this prohibition to the South African Police Services and take steps to remove child pornography and/or block access to the content determined to contain child pornography.

3.4. Intellectual property rights may not be violated, *inter alia,* by publishing, submitting, receiving, uploading, downloading, posting, using, copying or otherwise reproducing, transmitting, re-transmitting, distributing or storing any content or material or to engage in any activity that infringes, misappropriates or otherwise violates the intellectual property rights or privacy or publicity rights of KAPA or any individual, group or entity, including but not limited to any rights protected by any copyright, patent, trademark laws, trade secret, trade dress, right of privacy, right of publicity, moral rights or other intellectual property right now known or later recognized by statute, judicial decision or regulation.

3.5. KAPA's services may not be used to host, post, transmit, or re-transmit any content or material, or to create a domain name or operate from a domain name, that harasses, or threatens the health or safety of other persons or entities. KAPA reserves the right to decline to provide its web or content hosting services to any person or entity if KAPA determines its content to be in violation of this policy.

4. **Security**

4.1. The User and/or service provider shall be responsible for ensuring and maintaining the security of themselves and/or items.

4.2. KAPA personal shall bear no risk in respect of usage of the Application, nor ensures that service providers and/or users and/or items shall be secure.

4.3. The KAPA application is a means of connecting a service provider and user depending on the request and shall in no way accept liability for anything that may occur following the aforementioned connection.

5. **User and/or Service Provider Obligations**

5.1. Users and/or service providers bare sole responsibility for the any usage of the KAPA application.

5.2. KAPA bares no responsibility in respect of any usage by the user and/or service provider.

5.3. The user and/or service provider shall act promptly to remedy any breach of this policy.

6. **Enforcement**

6.1. Any failure on the part of the user and/or service provider to act in a manner consistent with the terms of this policy shall be regarded as a material breach and could potentially result in KAPA suspending or terminating the user and/or service provider's usage. Said suspension or termination of services may occur with or without warning to the user and/or service provider.

6.2. KAPA will furnish the User and/or service provider with a notice of a breach of this policy.

6.3. If KAPA's services are used in a way that it reasonably believes constitutes a breach of this policy, it may take action against the user and/or service provider. Said action may include but is not limited to:

6.3.1. restriction, suspension or termination of all or any portion of the usage of the account.

6.4. Should the User and/or service provider engage in any one or more of the above activities, KAPA may, without prejudice to any of its rights, take further action against the User and/or service provider. Said action includes but is not limited to:

6.4.1. Without notice, temporary or permanent limitation, restriction or suspension of the User and/or service provider's access to the KAPA's

services.

6.4.2. Terminate all agreements with the User and/or service provider with immediate effect;

6.4.3. Bill the User and/or service provider for any costs incurred by KAPA as a consequence of the User and/or service provider's activity;

6.4.4. Disclose information relating to the offending activity to the extent it may be necessary under the circumstances.

6.5. KAPA bares no obligation to monitor content of any user and/or service providers usage and/or orders. However, KAPA may monitor content of any such usage and orders as necessary to comply with applicable laws, regulations or other governmental or judicial requests; or to protect KAPA's interests and its users and/or service providers.

7. **Reporting**

7.1. Any complaints in connection with the violation of this policy should be directed to complaints@kapame.com and include sufficient detail as to allow KAPA to investigate and resolve the complaint.